

Rana Concast Limited v. PVVNL & Another

High Court of Judicature at Allahabad · Division Bench · 17 January 2023 · WRIT - C No. 58901 of 2007 · **Writ dismissed following Dev Prayag on additional security.**

HEADNOTE

A 2007 writ challenging additional security realised from consumers is dismissed. Counsel stated the controversy stood concluded by this Court's judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.) and admitted the challenge had been rejected. The petition therefore fails.

FACTUAL SUMMARY

Rana Concast Limited petitioned the Allahabad High Court in 2007 against Paschimanchal Vidyut Vitran Nigam Limited (PVVNL) and another, challenging additional security being realised from consumers by the electricity department. The writ was passed over in August 2011 on requests and an illness slip of respondents' counsel. On 17 January 2023 the Division Bench heard both sides. Petitioner's counsel stated that the controversy stood concluded by this Court's judgment dated 21 March 2017 in Writ-C No. 30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. and others).

HOLDING-UNITS

HOLDING-UNIT · additional-security

additional security from consumers

HOLDING

A writ challenging additional security realised from consumers fails and is dismissed where that controversy stands concluded against the consumer by this Court's judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.), counsel having fairly admitted that the challenge has been rejected. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. and 3 others</i> Writ-C No. 30898 of 2016 (Allahabad, 21.3.2017)			1	Referred